

ANALOGICAL, LEGAL & MORAL REASONING

How Comparison Drives Reasoning — in Everyday Life, the Courtroom, and Ethics



1

PART 1

Analogueical Reasoning

The reasoning we use every single day — comparing a new case to one we already know.

What Is Analogical Reasoning?

DEFINITION

Reasoning that draws a conclusion about a new, unfamiliar case by comparing it to one or more similar cases we already know the outcome of. No scientific test is run — we simply judge by resemblance.

- It is purely inductive — we move directly from one case to another, with no general rule in between.
- We do this constantly, almost without noticing:

1 A student picks a hostel near UMT because his friend lived there last year and liked it.

2 A family chooses a hospital in Lahore because a relative had a successful surgery there.

Formal structure: A has features a, b, c, and z. B has a, b, c. $\therefore$ B probably has z too.

Key Terms: Analogues

ANALOGUES

The items being compared in an argument from analogy.

PRIMARY ANALOGUE

The known case(s) — already observed and confirmed.

e.g. Hamza's Honda City — he already gets 14 km/L



SECONDARY ANALOGUE

The new case we are drawing a conclusion about.

e.g. Your Honda City — will it also get 14 km/L?

Example

Hamza bought a Honda City last year and gets good mileage in city traffic. You are thinking of buying the same model. The attribute being transferred — "good mileage" — moves from the primary analogue (Hamza's car) to the secondary analogue (your future car).

Six Principles for Evaluating an Analogy

- Every argument from analogy can be tested using six simple checks.
- Each principle either strengthens or weakens the conclusion — never proves it absolutely.

1

Relevance

Are the shared features actually connected to the conclusion?

2

Number

How many relevant similarities are there?

3

Disanalogy

Are there relevant differences that work against the conclusion?

4

Primary Analogues

How many confirming cases do we have?

5

Diversity

Do the confirming cases differ from each other in other ways?

6

Specificity

How precise is the conclusion being drawn?

Principles 1 & 2 — Relevance and Number

1 Relevance of Similarities

- Shared features only matter if they are causally connected to the conclusion.
- Irrelevant similarities — no matter how many — add nothing.

Example

Weak: "Your car will get good mileage because, like Hamza's, it's white and has tinted windows." Strong: "...because, like Hamza's, it has the same engine size."

2 Number of Similarities

- When similarities ARE relevant, more of them make the argument stronger.

Example

Same engine, same curb weight, same gear ratio, same tyres, similar driving routes — each additional relevant match makes Lucy's conclusion about mileage more believable.

Principles 3 & 4 — Disanalogy and Number of Cases

3 Disanalogy & Counteranalogy

- **Disanalogy:**
- a relevant difference that weakens the argument.
- **Counteranalogy:**

Example

Hamza drives on open DHA roads; you drive daily in congested inner-city traffic. This relevant difference (disanalogy) means your real mileage may not match his — despite the identical engine.

4 Number of Primary Analogues

- More confirming cases reduce the chance the result was a fluke.

Example

If five friends with the same Honda City model all report good mileage, the argument is far stronger than relying on Hamza alone. But if even one reports poor mileage, that case is a counteranalogy — and weakens the conclusion.

Principles 5 & 6 — Diversity and Specificity

5 Diversity Among Primary Analogues

- If all confirming cases share some hidden outside factor, that factor — not the thing being compared — may be the real cause.

Example

If all five friends use the same mechanic, same fuel station, and drive at the same speed, maybe THAT — not the car model — explains the good mileage. But if their habits are all different and they still all get good mileage, the car model is clearly the real cause. Diversity = a stronger argument.

6 Specificity of the Conclusion

- The more precise the conclusion, the easier it is to prove wrong — and the weaker the argument.

Example

"My car will get good mileage" (strong, broad) → "at least as good as Hamza's" (weaker) → "exactly 14.2 km/L" (weakest, very easy to falsify).

Legal Reasoning

Pakistan's legal system runs on precedent — and precedent is built entirely on analogy.

Legal Reasoning & Precedent

PRECEDENT

The principle that similar cases must be decided similarly. Pakistan's legal system, inherited from English common law, depends heavily on this rule.

- A lawyer argues: "This case is like Case X, which was decided in our favour — so this one should be too."
- The opposing lawyer argues the case is more like a different precedent with the opposite outcome.
- The judge decides by weighing which analogy is stronger — using the same six principles from Part 1.

Key Idea

Legal reasoning is essentially analogical reasoning dressed in formal language. Once students see this, case law becomes far less intimidating — it is comparison, evaluated systematically.

Legal Analogy vs. Everyday Analogy

Difference 1 — Relevance is Debatable

- In mileage, relevance is settled by physics — objective.
- In law, what counts as a 'relevant' similarity between two cases is constructed through creative legal argument.
- There is no formula — lawyers persuade judges that one comparison matters more than another.

Difference 2 — Not All Precedents Are Equal

- Court level and jurisdiction determine weight.
- Supreme Court > High Court > Sessions/District Court.
- A Lahore High Court ruling binds courts in Punjab — it may only be persuasive (not binding) in Sindh.

The Foreseeability Principle

THE RULE (Hadley v. Baxendale, 1854)

A party who breaches a contract is liable for resulting losses only if they could foresee, at the time of the agreement, that such losses would follow from a delay or failure.

Applied locally:

- A Faisalabad exporter hires a courier to deliver signed contracts to a Lahore buyer before 5 PM — and clearly tells the courier that missing the deadline will collapse a Rs. 30 million deal.
- The courier promises delivery by 3 PM but arrives at 7 PM. The deal is lost.
- The exporter sues for the lost profit.

Outcome

The courier is liable — because he was explicitly told the consequences of delay and could foresee them. Had the exporter said nothing about the deal's value, the courier could not be held responsible for a loss he never knew was possible.

Is an ATM Booth a "Structure"?

- Zafar breaks into an ATM booth on Ferozpur Road at 2 AM and steals the cash.
- **Legal definition of burglary:**
- trespassory breaking & entering a structure with intent to commit a felony.
- Question for the court: does an ATM booth count as a "structure"?

PROSECUTION'S ANALOGY

- ATM booth is like a small warehouse — stores cash, people's livelihoods depend on its contents.
- Over Rs. 500,000 inside → felony threshold met.
- Placing his hand inside = "entry."

DEFENSE'S ANALOGY

- Burglary law protects places people LIVE and WORK — no one works inside an ATM booth.
- More like a roadside kiosk: small, unattended.
- Zafar's past experience means he expected a limited cash amount — no felony intent.

Moral Reasoning

When intuition is unclear, we reason by comparing the case to one we already feel certain about.

Moral Reasoning by Analogy

THE METHOD

Moral questions are often resolved not by abstract rules but by comparing an uncertain case to a similar case where our moral intuition is already clear.

- This typically happens through dialogue — two people trade analogies back and forth.
- One side proposes an analogy → the other responds with a disanalogy or a competing analogy.
- The same six principles from Part 1 apply — relevance and disanalogy matter most here.
- The debate rarely "ends" with a winner — but both sides understand the issue far better.

Coming up

A short dialogue between two UMT students, Bilal and Nadia, debating whether paying a bribe to get into university is morally different from using family connections ("wasta").

Bilal & Nadia: Is a Bribe Different from "Wasta"?

B *Paying a bribe for admission is wrong — it takes a seat from someone who earned it on merit.*

N *But isn't that like tipping to skip a queue? You're paying for convenience, not hurting anyone.*

B *No — admissions are limited. If you get in by bribery, a more deserving student does NOT get in. The queue-tip analogy fails: a disanalogy.*

N *Fair. But what about students who get in through family "wasta" — connections, not merit either. Is that really so different?*

B *That's a strong point. Both bypass merit at someone else's expense. Whether money vs. social influence makes a moral difference is exactly the kind of question analogy helps us think through.*

What the Dialogue Teaches Us

- Neither student fully "wins" — and that is normal in moral reasoning.
- Each new analogy reframes the issue and reveals an assumption that had gone unexamined.
- A good disanalogy can collapse an analogy instantly (the queue-tip example).
- A strong competing analogy (wasta) can shift the whole conversation in a new direction.
- The value lies in the process: it sharpens thinking, exposes hidden assumptions, and changes perspectives — even without a final verdict.

Remember

In law, the dispute is eventually settled by a judge. In everyday morality, often no one settles it — but we still reason carefully, the same way, using the same six principles.

ONE METHOD, THREE DOMAINS

1

Everyday Life

Decisions made by comparing a new case to a known one — a hostel, a phone, a course.

2

Law

Lawyers argue by precedent — "this case is like that one." Judges weigh competing analogies.

3

Morality

Ethical questions are clarified — not always settled — by comparing to cases we already feel certain about.

The same six principles — relevance, number, disanalogy, primary analogues, diversity, specificity — evaluate the strength of any analogy, in any of these three domains.